Consciousness, Criminal Responsibility, and the Limitations of Agency

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The responsible agent in criminal law

Humans have the capacity for freedom and reason in thought and action, and thus capacity to act morally and legally right

The principle of fault

Only those who both could and should have acted differently should be held responsible.

The foundational idea of free will

“You must, therefore you can. A free will and a will subject to moral laws are one and the same thing.”

The structure of criminal responsibility

- A criminalized action (actus reus and mens rea)
- No justification making the act lawful
- No excuse making blame unreasonable

The key role of consciousness

- Responsibility targets humans
- Responsibility targets actions as volountary bodily dispositions
- Responsibility requires awareness of what one is doing
- Responsibility requires the ability to respond to reasons for action

AI-powered robots run like humans and shatter word records in Chinese marathon race

Story by Divya Bhati • 8h • 3 min read

AI-powered robots run like humans and shatter word records in Chinese marathon race

If you thought AI was all about intelligence and not about muscle, think again. AI-powered robots just ran half marathon in China and the results show that the machines are not poised to defeat humans on track and field as well. Running in Beijing in a 21-kilometre race, many humanoid robots not just finished the race but some of them also did so under one-hour mark, around which humans have been stuck forever.

The legal doctrine of ‘automatism’

- Applies where an action can be said to be involuntary, i.e., conscious control or awareness is absent
- Negates criminal responsibility the world over
- Surrounded by much legal and philosophical controversy

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Case reports

Sexsomnia and criminal responsibility: A forensic case report

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ARTICLE INFO

Keywords:
Sexsomnia

ABSTRACT

Introduction: Sexsomnia is a non–rapid eye movement parasomnia characterised by complex
arising during incomplete arousals. Forensic interpretation remains challenging because of

A matter of criminal justice

Challenging issues in legal practice

Section 221. ***False statement***

A penalty of a fine or imprisonment for a term not exceeding 2 years shall be applied to any person who in writing or orally provides false information to

a. the courts,
b. a notary public, see Act of 26 April 2002 no. 12,
c. a public authority under a duty to testify,
d. a public authority when the statement is intended to serve as evidence,
e. the EFTA court, or
f. the International Criminal Court.

Anker frifinnelsen av Hamse Ali: – Sjeldent

Statsadvokat Jan-Inge Wensell Raanes mener dommen må oppheves, og behandles på nytt igjen i tingretten.

FRIKJENT: Hamse Ali ble frikjent for falsk forklaring. politiadvokat Per Øyvind Valland sammen med Hamse Alis forsvarer, Anette Vangsnes Askevold.
FOTO: ODDGEIR BERLAND ØYSTESE / NRK

Synne Lykkebø Hafsaas
Journalist
+ 3 til

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Norwegian penal code section 20. Accountability

“A person who at the time of the act is under 15 years old is not criminally liable.

The same applies to a person who at the time of the act is unaccountable due to a) severe deviant state of mind,

b) severely impaired consciousness or

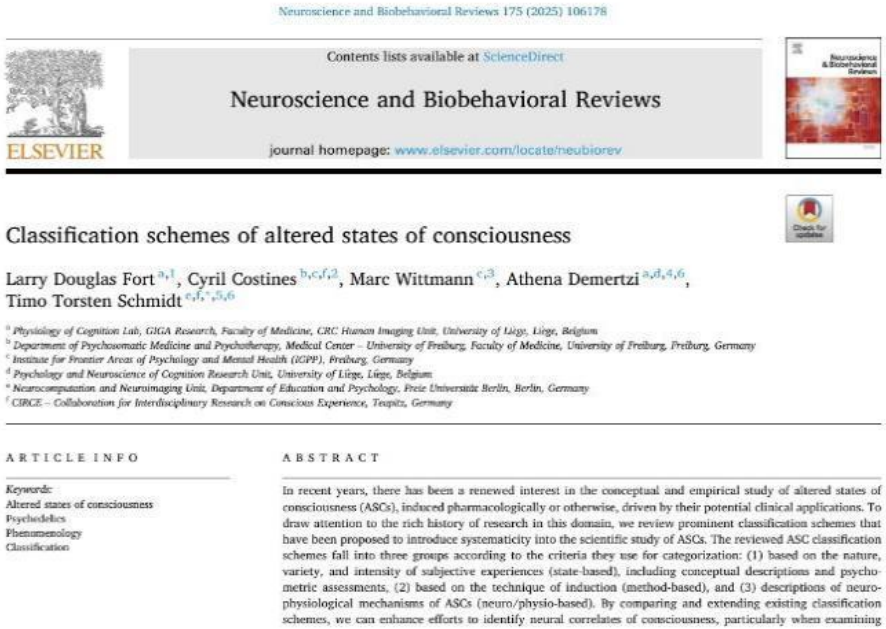
c) severe mental disability

When assessing unaccountability pursuant to the second paragraph, emphasis shall be given to the degree of failure in the person's perception of reality and functional capacity.”

Unaccountable due to severely impaired consciousness

- «Absolute unconsciusness»: All ability to move and to sense is lacking (coma)
- «Relative unconsciousness»: The ability to sense and move is intact, but the «connection to the normal self is gone»

- No direct medical equivalence; related to various types of conditions, such as epilepsy, diabetes, organic brain injuries, sleepwalking, states of intoxication, and psychogenic conditions



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Classification schemes of altered states of consciousness

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ARTICLE INFO

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ABSTRACT

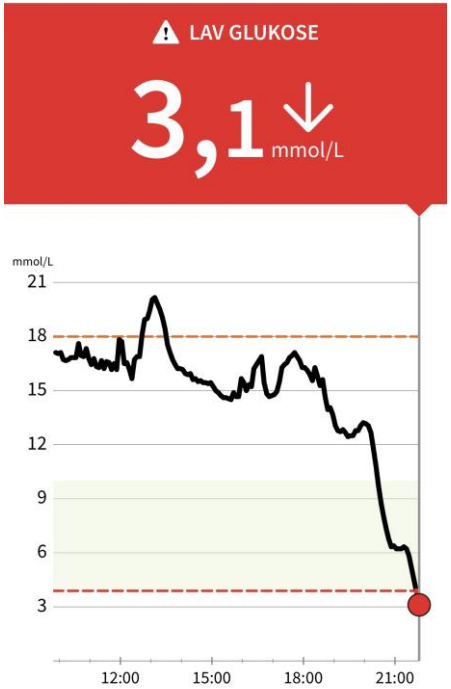
In recent years, there has been a renewed interest in the conceptual and empirical study of altered states of consciousness (ASCs), induced pharmacologically or otherwise, driven by their potential clinical applications. To draw attention to the rich history of research in this domain, we review prominent classification schemes that have been proposed to introduce systematicity into the scientific study of ASCs. The reviewed ASC classification schemes fall into three groups according to the criteria they use for categorization: (1) based on the nature, variety, and intensity of subjective experiences (state-based), including conceptual descriptions and psychometric assessments, (2) based on the technique of induction (method-based), and (3) descriptions of neurophysiological mechanisms of ASCs (neuro/physio-based). By comparing and extending existing classification schemes, we can enhance efforts to identify neural correlates of consciousness, particularly when examining

A matter of awareness

‘(…) states where the movement apparatus is in order and there is an adequate reaction to certain impressions from the outside world, but where the person in question acts without the ability to evoke objections. It is then not a coma in the medical sense, but a condition where sensory impressions are not registered, processed and stored in the memory as otherwise.”

/(Prop. 154 L (2016-2017) p. 84)

How severe is severely impaired consciousness?



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Review Article | Published: May 2009

Brain mechanisms of altered conscious states during epileptic seizures

Andrea Eugenio Cavanna & Francesco Monaco

Nature Reviews Neurology 5, 267–276 (2009) | Cite this article

1503 Accesses | 94 Citations | 4 Altmetric | Metrics

Abstract

Impaired consciousness has long been considered the hallmark of epileptic seizures. Both generalized seizures and complex partial seizures are characterized by a multifaceted spectrum of altered conscious states, in terms of the general level of awareness and the subjective contents of consciousness. Complete loss of consciousness occurs when epileptic activity involves both cortical and subcortical structures, as in tonic–clonic seizures and absence seizures. Medial temporal lobe discharges can selectively impair experience in

Difficult retrospective evaluations

- ‘Severely impaired consciousness’ must be present at the time of the act
- Relevant states are typically transient and difficult to prove retrospectively
- Experts and judges apply different “standards of proof”
- People accused of crimes can lie about their memory loss

Stavanger Aftenblad

25-åring mener at han må ha voldtatt kvinne i søvne

Retten er ikke i tvil om at den fornærmede kvinnen sov. Tiltalte mener at han også gjorde det da overgrepet skjedde.

Retten beskriver tiltaltes forklaring som helt usannsynlig. **Foto: Pål Christensen**

The social safety dilemma

- Defendants deemed unaccountable are acquitted
- If there is risk of recidivism, special preventive measures can be used
- Preventive measures typically consist in compulsory psychiatric care

“In a meeting with the Ministry, Randi Rosenqvist expressed that they had not seen an epileptic patient in psychiatric care for a very long time. Based on this, the Ministry proposes that the provision on self-induced unaccountability be reserved for cases where the perpetrator already has a fundamental and serious mental disorder (…)“

Section 62. ***Conditions for committal to psychiatric care***

An offender who is unaccountable pursuant to section 20, second to fourth paragraphs, may be committed to psychiatric care by court order when he or she has committed or attempted to commit an offence that violates another person's life, health or freedom or that might endanger these legal interests, the special sanction is necessary to protect society, and the risk of another serious violation of someone's integrity seems likely.

A glance at legal practice

- Very few acquittals – less than 2 cases annually
- Different types of conditions, and often combinations of different conditions
- Acquittals are commonly related to insufficient evidence

Frostating Appeal court (LF-2020-134224)

The experts explained to the Court of Appeal that blackouts are not common at a blood alcohol concentration below 2.0 ‰. (…), this points in the direction that it may be probable that the condition was due to more than alcohol intoxication alone. (…) The defendant has consistently stated that he does not remember anything. (…)

Following an overall assessment of the evidence, the majority therefore cannot rule out a concussion that affected the defendant in such a way that he experienced a severe impairment of consciousness.

Eidsivating Appeal court (LE-2021-22470)

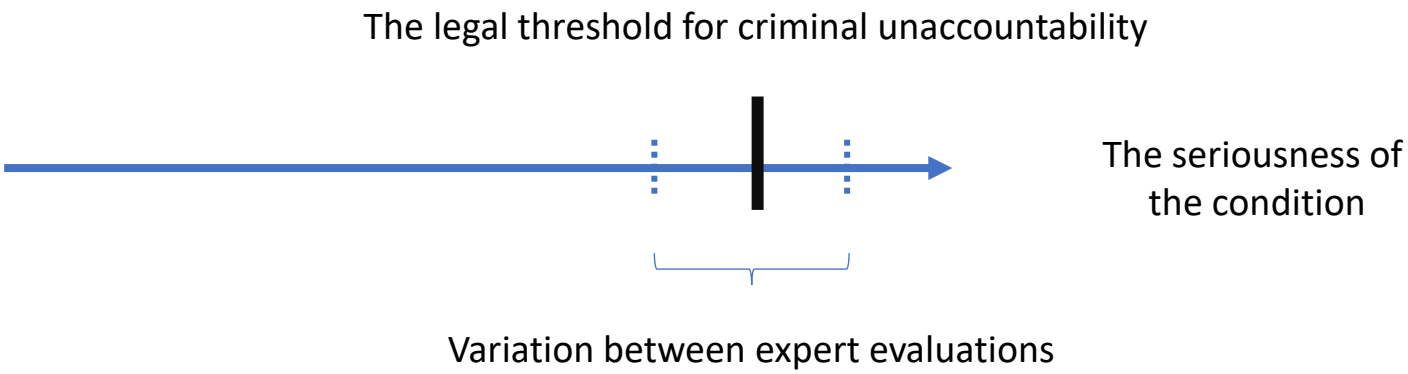
"In the forensic report it is stated (…) that 'it is uncertain whether the examinee had hypoglycaemia and, if so, to what extent this may have resulted in impaired reality testing and cognitive functioning.' Furthermore, it is stated that 'it is unlikely that the examinee had low blood glucose at the time of making serious threats against the cohabiting partner, but this cannot be completely ruled out, as psychological stress in itself may, in some individuals with type 1 diabetes, trigger hypoglycaemia, even though hyperglycaemia is the most common outcome.'

After a renewed and comprehensive review of the evidence in the case, in which the report from the court-appointed experts has been accorded particular weight, I have, following an overall assessment, concluded that the appropriate course of action is to discontinue the prosecution against A."

Hålogaland Appeal court (LH-2021-16397)

«The majority cannot rule out that the defendant experienced a reactivation of the trauma she suffered when she was raped approximately one year earlier. Nor can it be ruled out that this reactivation, combined with alcohol intoxication, placed the defendant in a state of impaired reality testing, or a disturbance in her perception of reality.”

Equal treatment is a legal ideal, but not a practical reality



Traffic offences

- Strict special regulations governing driving licences
- Assessments of fault and negligence, rather than criminal unaccountability
- Many are sentenced

Gulating lagmannsrett (LG-2013-23232)

Given the knowledge he had of his illness, he should have recognized the possibility that hypoglycaemia could also occur while driving. Having nevertheless chosen to drive a car, as in this case over a longer distance, it should have been entirely self-evident that he adjusted his driving behaviour differently from what he in fact did, by taking frequent breaks and measuring his blood glucose levels regularly, at least once every hour. He failed to do so, and the Court of Appeal cannot view this otherwise than that he consciously accepted the risk that hypoglycaemia would not occur.

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Does diabetes affect the risk of involvement in a motor vehicle crash?

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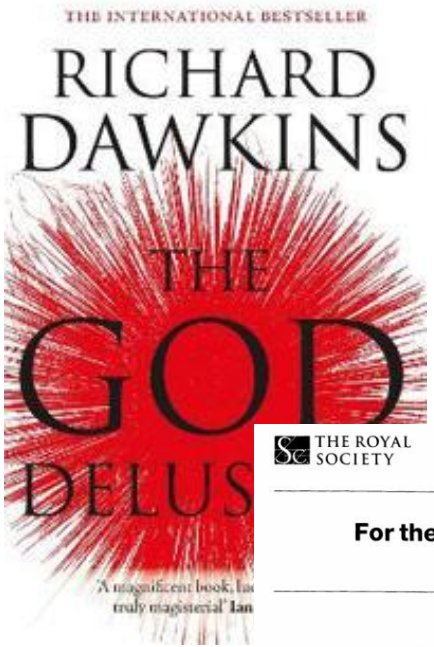
Are we better of without contested ideas of the responsible agent?

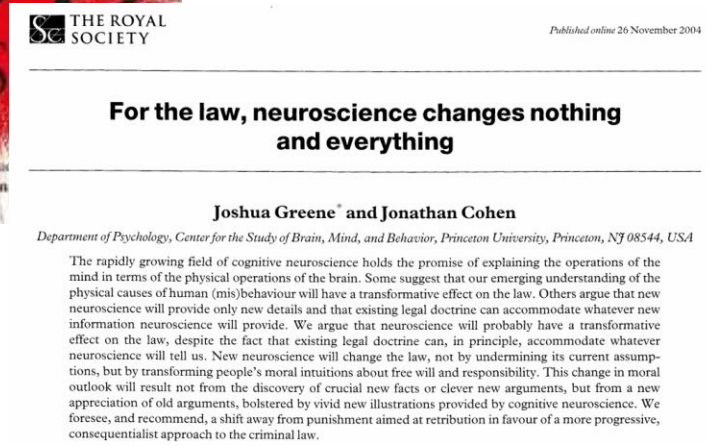
"A truly scientific, mechanistic view of the nervous system make[s] nonsense of the very idea of responsibility"

Dawkins, 2006.

"free will is an illusion, (…) Retributivist notions of criminal responsibility ultimately depend on this illusion"

Greene and Cohen, 2004





THE ROYAL SOCIETY

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For the law, neuroscience changes nothing and everything

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The rapidly growing field of cognitive neuroscience holds the promise of explaining the operations of the mind in terms of the physical operations of the brain. Some suggest that our emerging understanding of the physical causes of human (mis)behaviour will have a transformative effect on the law. Others argue that new neuroscience will provide only new details and that existing legal doctrine can accommodate whatever new information neuroscience will provide. We argue that neuroscience will probably have a transformative effect on the law, despite the fact that existing legal doctrine can, in principle, accommodate whatever neuroscience will tell us. New neuroscience will change the law, not by undermining its current assumptions, but by transforming people's moral intuitions about free will and responsibility. This change in moral outlook will result not from the discovery of crucial new facts or clever new arguments, but from a new appreciation of old arguments, bolstered by vivid new illustrations provided by cognitive neuroscience. We foresee, and recommend, a shift away from punishment aimed at retribution in favour of a more progressive, consequentialist approach to the criminal law.

Ideological questions for further discussion

Should we reform criminal law into a system of interventions based on scientific grounds—and if so, which grounds?

Centre on Criminal Justice and Agency

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Thank you for your attention!